

THOMAS, J., concurring

approach taken in *Bivens*. Therefore, as the Court backed away from creating statutory causes of action, it also effectively cabined the *Bivens* doctrine to the facts of *Bivens*, *Davis*, and *Carlson*. For nearly 40 years, the Court has “‘consistently refused to extend *Bivens* liability to any new context or new category of defendants.’” *Abbasi*, 582 U. S., at 135 (quoting *Malesko*, 534 U. S., at 68); see also *ante*, at 102.*

In doing so, our decisions have undermined the validity of the *Bivens* doctrine. As the Court recognizes, “[w]e have stated that expansion of *Bivens* is a disfavored judicial activity.” *Ante*, at 101 (internal quotation marks omitted). And we have now repeatedly acknowledged the shaky foundation on which *Bivens* rests, stating that “in light of the changes to the Court’s general approach to recognizing implied damages remedies, it is possible that the analysis in the Court’s three *Bivens* cases might have been different if they were decided today.” *Abbasi*, 582 U. S., at 134; see also *ante*, at 101 (noting that it is “doubtful that we would have reached the same result” if *Bivens* were decided today). Thus, it appears that we have already repudiated the foundation of the *Bivens* doctrine; nothing is left to do but overrule it.

Our continued adherence to even a limited form of the *Bivens* doctrine appears to “perpetuat[e] a usurpation of the legislative power.” *Gamble*, 587 U. S., at 718 (THOMAS, J., concurring). Federal courts lack the authority to engage in the distinctly legislative task of creating causes of action for damages to enforce federal positive law. We have clearly recognized as much in the statutory context. See *supra*, at 116. I see no reason for us to take a different approach if the right asserted to recover damages derives from the Consti-

*See, e. g., *ante*, at 114; *Ziglar v. Abbasi*, 582 U. S. 120 (2017); *Minneci v. Pollard*, 565 U. S. 118 (2012); *Wilkie v. Robbins*, 551 U. S. 537 (2007); *Correctional Services Corp. v. Malesko*, 534 U. S. 61 (2001); *FDIC v. Meyer*, 510 U. S. 471 (1994); *Schweiker v. Chilicky*, 487 U. S. 412 (1988); *United States v. Stanley*, 483 U. S. 669 (1987); *Bush v. Lucas*, 462 U. S. 367 (1983); *Chappell v. Wallace*, 462 U. S. 296 (1983).